

SENATE BILL 467

By Bowling

AN ACT to amend Tennessee Code Annotated, Title 28
and Title 39, relative to civil liability.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 39, Chapter 17, Part 9, is amended by
adding the following as a new section:

(a) As used in this section:

(1) "Commercial entity" means the same as defined in § 39-17-912; and

(2) "Internet" means the same as defined in § 39-17-912.

(b)

(1) A commercial entity that knowingly engages in an act that violates
this part or title 39, chapter 17, part 10 may be found civilly liable to an individual
for nominal damages; actual damages; punitive damages, if applicable pursuant
to § 29-39-104; court costs; and reasonable attorney fees as ordered by the
court.

(2) An action under subdivision (b)(1) may be certified as a class action
pursuant to Rule 23 of the Tennessee Rules of Civil Procedure, if appropriate.

(3) An individual may bring a civil action against a commercial entity
pursuant to subdivision (b)(1) without regard to whether the commercial entity's
act resulted in a conviction for a criminal offense under this part or title 39,
chapter 17, part 10.

(c) An internet or wireless service provider, affiliate, or subsidiary of an internet
or wireless service provider, search engine, or cloud service provider does not violate

this section by providing access or connection to or from a website or other information or content on the internet, or a facility, system, or network not under that provider's control, including, but not limited to, transmissions, downloading, storing, or providing access, to the extent that the provider is not responsible for the creation of the content of the communication that constitutes obscene material.

(d)

(1) The attorney general and reporter may seek injunctive and other equitable relief against a commercial entity that knowingly engages in behavior that violates this part or title 39, chapter 17, part 10.

(2) The attorney general and reporter may issue guidance to assist commercial entities in complying with this part and title 39, chapter 17, part 10.

SECTION 2. If any provision of this act or its application to any person or circumstance is held invalid, then the invalidity does not affect other provisions or applications of the act that can be given effect without the invalid provision or application, and to that end, the provisions of this act are severable.

SECTION 3. This act takes effect upon becoming a law, the public welfare requiring it.